

that the additional discovery serves to supersede the prior requests, the motion appears moot because the prior discovery has been effectively withdrawn. Otherwise, the concession by Plaintiff appears to support the issuance of a protective order since, if nothing else, the written discovery is largely dependent upon the “relevant time period” that predates the prior settlement or, alternatively, the discovery references the “class members,” a term which also appears to include the same temporal reference, though that is not true as to every single discovery request.

13. *Novalk, LLC v. Cirit, et al*, Case No. CIVSB2122277
Defendant’s Motion for Attorneys’ Fees
6/26/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **AWARD** reasonable attorneys’ fees in the amount of \$191,250.00 to Defendants.

Summary of the Law

Generally, attorneys’ fees are borne by each party. (Code Civ. Proc., § 1021; *Pederson v. Kennedy* (1982) 128 Cal.App.3d 976, 978-79.) Nonetheless, attorneys’ fees are recoverable in litigation when authorized by contract, statute, or law. (Code Civ. Proc., §1033.5, subd. (a)(10).) Here, it is undisputed that the Declaration of Restrictions that encumbers all parties’ property provides for attorney fees when sued on the Declaration.

Analysis

Relevant here, after a three-day bench trial in late October of 2025, the Court granted Defendants’ motion for judgment pursuant to Code of Civil Procedure section 631.8 and ordered judgment entered in Defendants’ favor. Now, before the Court, is Defendants’ motion for attorneys’ fees.

Plaintiff argues that under the catalyst theory, it can be deemed the prevailing party because it obtained the objectives of its allegations by Defendants foregoing its claim that Defendant S. Cirit had the right and authority to manage the Shopping Center [FAC, ¶132]; foregoing seeking to extract improper maintenance fees [FAC, ¶132]; removing the blockage to the east access side of the Shopping Center [FAC, ¶135]; and removing any parking restrictions. (FAC, ¶134.) These changes occurred while this case was pending.

Under the catalyst theory, a plaintiff can recover fees if it “establish[es] that (1) the lawsuit was a catalyst motivating the defendants to provide the primary relief sought; (2) that the lawsuit had merit and achieved its catalytic effect by threat of victory, not by dint of nuisance and

threat of expense, as elaborated in *Graham*; and, (3) that the plaintiffs reasonably attempted to settle the litigation prior to filing the lawsuit.” (*Tipton-Whittingham v. City of Los Angeles* (2004) 34 Cal.4th 604, 608.)

However, here, Defendants seek contractually-permitted attorney fees. They are not relying on any statute for the right to be held the prevailing party and entitled to recover attorneys’ fees associated with the tort claims. Thus, even if the Court considers the catalyst theory, Plaintiff submits no evidence to support its contention that Defendant changed its position on the primary relief sought within the FAC; that Defendants changed their position because Plaintiff’s contentions had merit; and/or that Plaintiff attempted to resolve the issues before the lawsuit was filed.

Also, under Code of Civil Procedure section 1021.5, the entitlement to attorneys’ fees exists if a significant benefit was conferred on the general public or a large class of persons. (*Sweetwater Union High School Dist. v. Julian Union Elementary School Dist.* (2019) 36 Cal.App.5th 970, 980.) Here, Plaintiff does not demonstrate the alleged changes affect any large class of persons. Rather, by all implication, it affected Plaintiff only or, perhaps, a small group of owners within the at issue shopping center.

The Reasonableness of Fees – In determining the fees, the goal is to determine a reasonable fee. (*Chavez v. City of Los Angeles* (2010) 47 Cal.4th 970, 985.) This is done by applying the lodestar method. (Civ. Code, § 1794(d); *Chavez, supra*, 47 Cal.4th at p. 985.) The Court can reduce the hours that appear unreasonably inflated. (*Chavez, supra*, 47 Cal.4th at p. 990.) Additionally, inefficient or duplicative efforts are not subject to compensation. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The burden is on the party seeking attorney fees to prove the fees are reasonable. (*Goglin v. VMW of North America, LLC* (2016) 4 Cal.App.5th 462, 470.)

Here, Defendants seek to recover \$203,625 in attorneys’ fees, which is based on 452.5 hours of services between September 2021 and December 2025. With the supplemental brief, Defendant seek to recover an additional \$15,000, which is based on 33.3 more hours.

As a starting point, the parties do not contest the reasonableness of Defendants’ attorneys’ rate. Thus, we look to whether the allocated time is reasonable:

Additional Fees: The problem with the requested additional \$15,000 in fees is three-fold. First, the request is made without providing Plaintiff an opportunity to respond. Second, the additional fees relate to matters associated with the appeal. It is premature to recover fees related to the appeal. Defendants may be able to recover the fees for the appeal, but it will rest on whether the judgment is affirmed. Third, although the additional fees also relate to work on the attorneys’ fee motion and attending the hearing, Defendants needed to identify the fees sought associated with that work in their moving papers so Plaintiff could have the opportunity to respond. Although the motion stated it would seek those fees, it made no offer of what the estimated fee would be. Although a reply or supplemental brief could provide more exact

quantification of the work on the attorneys' fee motion after its filing, the moving papers should still give the opposing side an idea of the fees that would be sought. Based on the above, none of the \$15,000 additional fees are recoverable.

Original Fees: As Defendants' right to attorneys' fees rests on a contract, the fees are limited to only those on the contract action. (*Santisas v. Goodin* (1998) 17 Cal.4th 599, 615.) This litigation encompassed contractual and tort claims. Thus, the fees recoverable should only be those for work on the contractual claims.

Nonetheless, fees need not be apportioned between distinct causes of action when the claims involve a common core of facts or are based on related legal theories. (*Brown Bark III, L.P. v. Haver* (2013) 219 Cal.App.4th 809, 829.) The standard is that fee apportionment is not necessary when the claims are so intertwined that it would be impractical, if not impossible, to separate the attorney's time into compensable and non-compensable units. (*Id.* at pp. 829-830.) Whether to apportion fees is within the trial court's sound discretion. (*Brown Bark, supra*, 219 Cal.App.4th at p. 830.) Here, after reviewing the records, there are none that can be ascertained to clearly relate only to any tort claim and, thus, subject to apportionment and cutting.

However, there are three categories that are not warranted: (1) travel; (2) secretarial tasks; and (3) unreasonable.

- a. Travel – Although travel for the mediation, trial, and in-person trial readiness conference would be reasonably incurred, the following travel entries are for hearings that Counsel could have appeared via ZOOM or Court Call: 10/19/21 (ex parte hearing); 11/15/21 (preliminary injunction); 12/2/21 (preliminary injunction); 1/27/22 (strike motion); 4/6/22 (strike motion); 4/28/22 (strike motion); 8/17/22 (discovery motions); 3/12/25 (hearing on Novalk's legal representation); and 5/1/25 (OSC re Novalk's representation). Now, these entries include time for the actual appearance and preparing notices of ruling.
- b. Secretarial – Although attorney fees may include paralegal (or law clerk) fees, it generally does not include secretary or receptionist fees. (See, e.g., *Mountjoy v. Bank of America, N.A.* (2016) 245 Cal.App.4th 266, 270 [re non-attorney work].)

Here, the Court finds entries on 12/1/21; 10/31/22; 1/17/24; 8/13/25; 11/1/25; 11/28/25; and 12/3/25, to be more consistent with such secretarial or receptionist work. The Court would cut a total of 4.25 hours (\$1,912.50 in the requested fees) as non-compensable.

- c. Unreasonable – The following five entries related to matters that appear unreasonable:
- i. 12/13/21, 12/15/21, & 12/24/21: For review, revise, and communicate on the gate automation system and cessation of C-Tech’s maintenance services – 1.5 hours, 1 hour, and 1 hour. As discussed above, Plaintiff alleged in the FAC that Defendants improperly denied access on the east side of the Shopping Center and recovered maintenance fees through C-Tech. These entries indicate the agreement to stop such activities, which is a “win” for Plaintiff. Thus, the 3.5 hours for this work should not be incurred by Plaintiff.
 - ii. 11/25/24 & 11/26/24: Review email regarding a City Code Enforcement Notice for 1.5 hours, and review of C-Tech’s invoices to NC Queen for 0.25 hours. This litigation did not concern Code Enforcement matters. It is further unclear the reasonableness of reviewing invoices to NC Queen. Nothing in these entries appears relevant to the litigation to then require Plaintiff to cover those costs. Thus, the 1.75 hours for these entries should be cut.

The above totals 5.25 hours or \$2,362.50 in fees.

The total proposed cuts are \$12,375. Reducing that from the amount sought provides for an award of \$191,250 in attorneys’ fees.

14. *Baker, et al, v. Chaffey Joint Union HSD., et al*, Case No. CIVSB2128630 (CIVSB2134233)
Motion for Class Certification
6/26/26, 9:00 a.m., Dept. S-17

This matter has been continued from its prior May 4, 2026, hearing date

Tentative Rulings

As to Requests for Judicial Notice: With its opposition and its *supplemental* opposition, the District requests notice of the Government Claims filed by Baker and Doe. (Exhs. 1-2.) The Court would **DENY** (both the requests filed on April 12, 2026 and on June 15, 2026) because they are irrelevant to the issues on a motion for certification.

As to Objections: The District further files seven evidentiary objections to the Linder Declaration. The Court would **SUSTAIN** number two relating to a criminal report (hearsay and relevance) but **OVERRULE** as to the remainder.